

TENTATIVE RULINGS for LAW and MOTION

July 9, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Thirteen	(530) 406-6777
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: Estrada v. Garcia
Case No. CV2025-2260

Hearing Date: July 9, 2026 **Department Fourteen** **9:00 a.m.**

OSC re: preliminary injunction

Defendants Daniel Navarrette Garcia and Rosa Maria Hernandez de Anda (collectively, “defendants”) filed an untimely opposition. (Minute Order (6/10/26) [“defense opposition due by June 29, 2026”].) Despite being untimely, the Court will consider defendants’ opposition. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers.”].)

Parties are **DIRECTED TO APPEAR** for an OSC hearing re: plaintiffs Felipe Estrada and Alicia Navarrete’s request for a preliminary injunction. Each side shall be limited to ten minutes of oral argument.

Motions to be relieved as counsel

On the Court’s own motion, Melanie De Marco’s motions to be relieved as counsel for defendants Daniel Navarrate Garcia and Rosa Maria Hernandez De Anda are **CONTINUED** to **August 26, 2026**, at 9:00 a.m. in Department Fourteen.

TENTATIVE RULING

Case: Iden v. FCA US, LLC et al.
Case No. CV2024-2815

Hearing Date: July 9, 2026 **Department Thirteen** **9:00 a.m.**

Plaintiffs Craig Iden and Jason Miller (collectively, “plaintiffs”) filed an untimely opposition. (Code Civ. Proc., § 437c, subd. (b)(2) [all papers opposing a motion for summary judgment must be filed with the court and a copy served on each party no less than twenty days before the hearing].) The Court declines to consider plaintiffs’ very late-filed opposition or any documents submitted in support thereof. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that “a trial court has broad discretion to accept or reject late-filed papers.”].)

The Court rules on defendants FCA US, LLC (“FCA”) and Hoblit Chrysler Jeep Dodge’s (“Hoblit”) (collectively, “defendants”) motion for summary adjudication as follows:

- Defendants’ motion for summary adjudication as to the first cause of action (Civil Code section 1793.2(d)) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) The Court finds that defendants have met their initial burden to show that plaintiffs failed to present the subject vehicle for repair during the express warranty period and there was never a warranty repair made to subject vehicle during the warranty period. (Civ. Code § 1793.2, subd. (d); *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1208 [“The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle.”]; see *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101; UMFs 1, 2, 5-7.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, 862.)
- Defendants’ motion for summary adjudication as to the second cause of action (Civil Code section 1793.2(b)) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) The Court finds that defendants have met their initial burden to show that plaintiffs never presented the subject vehicle for warranty repair during the express warranty period and thus FCA did not fail to service or repair the subject vehicle within 30-days. (Civ. Code § 1793.2, subd. (b); UMFs 1, 2, 5-7.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar, supra*, 25 Cal.4th 826, at p. 862.)
- Defendants’ motion for summary adjudication as to the third cause of action (Civil Code section 1793.2(a)(3)) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) The Court finds that defendants have met their initial burden to show that plaintiffs never presented the subject vehicle for warranty repair during the express warranty period and thus FCA did not fail to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period. (Civ. Code § 1793.2, subd. (a)(3); UMFs 1, 2, 5-7.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar, supra*, 25 Cal.4th 826, at p. 862.)

- Defendants’ motion for summary adjudication as to the fourth cause of action (breach of the implied warranty of merchantability) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) The Court finds that defendants have met their initial burden to show that plaintiffs cause of action for breach of the implied warranty of merchantability is time-barred. (Civ. Code §§ 1791.1, 1794, 1795.5; *Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297, 1306 [the statute of limitations for breaches of the implied warranty of merchantability is four years]; *Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495; UMFs 1, 10.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar, supra*, 25 Cal.4th 826, at p. 862.)
- Defendants’ motion for summary adjudication as to the fifth cause of action (negligent repair) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) The elements to plead a negligent repair cause of action is the same as that for a cause of action for negligence: (1) the existence of a duty to exercise due care; (2) breach of that duty; (3) causation; and (4) damages. (*Merrill v. Navegar, Inc.* (2001) 26 Cal.4th 465, 500.) The Court finds that defendants have met their initial burden to show that plaintiffs never presented the subject vehicle for warranty repair to Hoblit, thus there is no evidence that Hoblit breached its duty to plaintiffs. (*Ibid.*; UMFs 1, 2, 5-7.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar, supra*, 25 Cal.4th 826, at p. 862.)
- Defendants’ motion for summary adjudication as to the sixth cause of action (fraudulent inducement - concealment) is **GRANTED**. (Code Civ. Proc., § 437c, subd. (f)(1); (o), (p)(2).) “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40.) The Court finds that defendants have met their initial burden to show that that plaintiffs did not have a transactional relationship with FCA when they purchased the subject vehicle to establish a duty to disclose. (*Ibid* “[s]uch a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large”]; *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276 , 311-312; UMF 1.) Further, plaintiffs have not met their burden to show a triable issue of material fact as to this issue. (*Aguilar, supra*, 25 Cal.4th 826, at p. 862.)

Based on the Court’s rulings above, defendants’ motion for summary judgment is **GRANTED**. (Code Civ. Proc., § 437c, subds. (c), (p)(2); *Aguilar, supra*, 25 Cal.4th at p. 843.)

The trial readiness conference, set for July 20, 2026, and the jury trial, set for August 10, 2026, are **VACATED**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Singh v. G & S Gasoline, Inc.**
 Case No. CV2026-1510

Hearing Date: **July 9, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, the hearing on petitioner Gurdev Singh's petition for writ of mandate to compel inspection and copying of corporate books and records is **CONTINUED** to **September 3, 2026**, at 9:00 a.m. in Department Fourteen.

TENTATIVE RULING

Case: **Tapia v. Sanford**
 Case No. CV2025-2090

Hearing Date: **July 9, 2026** **Department Fourteen** **9:00 a.m.**

Malek H. Shraibati of BD&J, P.C.'s unopposed motion to be relieved as counsel for plaintiff Alberto Herrera Tapia is **DENIED WITHOUT PREJUDICE**. (Cal. Rules of Court, rule 3.1362.) Mr. Shraibati has not filed a proof of service showing that the notice of motion and motion, the declaration, and the proposed order were timely served on his client. (Cal. Rules of Court, rule 3.1362(d), 3.1300(c).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.